

SENATE BILL 1391

By Watson

AN ACT to amend Tennessee Code Annotated, Title 49
and Title 68, relative to anti-choking devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 1, Part 1, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Department" means the department of health;

(2) "LEA" has the same meaning as defined in § 49-1-103;

(3) "Medical first responder" means a fire department or emergency
services agency, emergency services personnel, or other person who responds
to calls for emergency medical assistance from a 911 call;

(4) "Private school" has the same meaning as defined in § 49-6-3001;

and

(5) "Public charter school" has the same meaning as defined in § 49-13-
104.

(b) The department shall establish and, by July 1, 2025, administer, a grant
program to reimburse LEAs, public charter schools, private schools, and medical first
responders for the costs of anti-choking devices purchased by the LEA, public charter
school, private school, or medical first responder on or after July 1, 2025.

(c)

(1) Subject to subdivision (c)(2) and appropriations, a grant awarded to:

(A) An LEA is the cost to the LEA of purchasing one (1) anti-choking device for each cafeteria located in each school under the jurisdiction of the LEA's local board of education;

(B) A public charter school or private school is the cost to the school of purchasing one (1) anti-choking device for each cafeteria in the public charter school or private school, as applicable; or

(C) A medical first responder is the cost to the medical first responder of purchasing one (1) anti-choking device for each vehicle used by the medical first responder to respond to calls for emergency medical assistance from a 911 call.

(2) The department shall not award more than five hundred thousand dollars (\$500,000) in total grants through the grant program.

(d) By July 31, 2026, and by each July 31 thereafter, the department shall submit a report to the general assembly regarding the amount of grant funds available in the grant program for the immediately preceding fiscal year; the number of LEAs, public charter schools, private schools, and medical first responders that applied for a grant in the immediately preceding fiscal year; and the number and amounts of grants awarded pursuant to this section in the immediately preceding fiscal year.

(e) The department shall promulgate rules to effectuate this section, including rules to establish the types of anti-choking devices that are reimbursable through the grant program. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(f) This section is repealed on July 1, 2028.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.